IRENE MARINGISA TAKAWIRA (nee CHIWORA)
versus
MICHAEL TAKAWIRA

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE; 20 July & 18 August 2026

Chamber Application – Contempt of Court

S Mangwengwende, for the applicant
T T Magwaliba, for the respondent

MAXWELL J:

At the hearing of this matter, I granted the application, finding the Respondent to be in contempt of an order granted on 26 January 2026 under case number HCHF 2238/25.

A request for reasons was made. These are they.

On 26 January 2026 this court granted an order under case number HCHF 2238/25 incorporating a Consent Paper signed by the parties on 16 January 2026. The Respondent was legally represented when the Consent Paper was executed and incorporated into an order of this Court. Applicant avers that despite knowing that the Consent Paper was incorporated into a court order, Respondent has failed and/or refused to comply with several material provisions of the said order. Further that despite several prior written and verbal demands for compliance, the Respondent failed to remedy his breaches.

Applicant stated that on 24 February 2026 his legal practitioners addressed a formal letter to the Respondent's Legal Practitioners, placing the Respondent on clear and unequivocal notice of his non-compliance with the court order and demanding compliance within seven days of receipt of the letter, failing which contempt proceedings would be instituted.

On 25 March 2026 Applicant approached the court in terms of r 79(1) of this court's 2021 rules. She sought an order declaring that Respondent was in contempt of the order of 26 January 2026 in case number HCHF 2238/25. She prayed that Respondent be sentenced to a sentence

wholly suspended on condition he complies within seven days of the order. In the event of non-compliance, Respondent was to be apprehended and lodged in Harare Remand Prison until such time he purges his contempt.

Respondent opposed the application. He raised preliminary objections, firstly, that the Applicant used a wrong form as she ought to have used Form No 23 instead of the Form 25 that she used. Secondly, Respondent submitted that the Founding Affidavit is defective as it appears the affidavit was not signed by the Applicant or alternatively, was not signed before a Commissioner of Oaths.

On the merits he disputed that he was in contempt. He explained the steps he has taken in an effort to comply with the Consent Paper. He indicated that in response to the letter of demand, he had instructed his legal practitioners to request for a meeting. Applicant's legal practitioners had indicated that they would revert on the proposed meeting after receiving instructions from their client. Instead of scheduling a meeting, Respondent was served with the present application.

In answer Applicant stated that the use of a wrong form is not fatal to an application and Respondent has not demonstrated any prejudice that he suffered. On the Founding Affidavit Applicant stated that she changed her signature following divorce after reverting to her maiden name. She produced her passport to confirm the change of signature and also the fact that she was in Harare when the Founding Affidavit was signed. She insisted that the Respondent had deliberately not complied with the Consent Paper.

PRELIMINARY POINTS

At the hearing of the matter Mr *Magwaliba* insisted with the preliminary points. I dismissed the preliminary points. Respondent did not demonstrate that he suffered any prejudice due to the use of the wrong form. Form 23 requires that a party's attention be drawn to the procedural rights available to him including that he must be given notice as to when he must file opposing papers. While the form used does not set out the procedural rights to which Respondent's attention must be drawn, it does set out the grounds of the application. The court has discretion in terms of r 7 to condone the use of the wrong form where no prejudice has been suffered by the respondent therefrom. The first point *in limine* failed on that basis.

On the second point *in limine*, Respondent did not dispute Applicant's answer that she changed her signature after reverting to her maiden name. She also proved that she was in Zimbabwe at the time the affidavit was signed. The preliminary point was therefore without merit.

MERITS

Mr *Mangwengwende* outlined five instances in which Respondent had not complied with the Consent Paper.

1. Failure to deliver a title deed within 3 days of the order. This was abandoned as compliance came way above the 3 days that had been ordered.
2. Provision of the lease agreement for a property in Bulawayo. The property is co-owned by the parties, Lot 2 of stand 767 Bulawayo Township measuring 1388m² held under Deed of Transfer No 4736/97 also known as 15A Duncon Road Surburbs, Bulawayo.

Respondent had been responsible for overseeing the property since 2020. The parties agreed that a copy of the lease agreement was to be provided to the Applicant for transparency. The lease agreement would shed light on who the tenants are, and how much they were paying. Clause 2.12 of the Consent Paper was couched in the following terms;

> "2.12 It is recorded that the immovable property is presently occupied by a tenant paying monthly rentals of US$1 100.00 (One Thousand One Hundred United States Dollars) and the Defendant shall forthwith provide the Plaintiff with a copy of the lease agreement in respect of the Property."
> (underlining for emphasis)

Mr *Magwaliba* submitted that there was no requirement for the lease agreement to be re-written. Re-writing presupposes an existing written agreement. None was tendered in this case. The parties had agreed that a copy was to be availed to the Applicant. There is no way a copy of an oral agreement is availed to the other party. Use of the word "copy" means there is an existing document that can be copied. Mr *Magwaliba* submitted that the Respondent was of the belief that the agreement he provided on 27 October 2022 discharged his obligation. He however did not explain how in the face of the submission by Mr *Magwengwende* that the document provided on 27 October 2022 had been availed prior to the divorce negotiations. I am not persuaded that an offer to swop property made on 27 October 2022 discharged the obligation created on 16 January 2026 to provide a lease agreement. The mere fact that Respondent

consented to the insertion of that requirement in the Consent Paper is an indication that he appreciated the need for providing a formal lease agreement. The argument by Mr *Magwaliba* that the language of the Consent Paper is ambiguous, imprecise and open to various interpretations has no basis.

3. Failure to pay $250 per month as Applicant's share of rental income with effect from the date of the Court order, that is, 26 January 2026. In response, Respondent acknowledged his indebtedness. He stated that he made a firm undertaking to settle the same. Respondent did not say there is no tenant in the property. Neither did he say the tenant was failing to pay rentals on time. His response that it is a debt sounding in money which is not enforceable by way of contempt of court proceedings smacks of a deliberate act of not paying. He uses the rentals that are due to Ms Chiwara contrary to the agreement reached by the parties. His response refers to correspondence authored before the application was filed. Despite making an undertaking to settle the amounts due "in the forthcoming month or from the proceeds of sale of the immovable property" none has been done as at the date of hearing. His non-compliance is therefore wilful.

4. **Non-delivery of movable property**

Applicant expected Respondent to deliver the items in the photos he sent to her prior to the signing of the Consent Paper. The items in the photograph were listed in the Consent Paper. Applicant submitted that Respondent delivered a different set of items which do not belong to her. In addition, some of the delivered items like books and photo albums were incomplete.

Respondent did not dispute that he had sent a photo of the items he had said were available and that what was delivered is different. The Consent Paper listed the items to be delivered to the Applicant in para 3.1 (a) to (c). These were:

a. all photo albums and library books presently in the possession of the Defendant in Harare.

b. one microwave, together with blankets, linen, cushions, kitchen utensils and crockery presently situated in Bulawayo.

c. $9 000.00 for dissipated property.

It is clear that $9 000.00 was to be over and above the property listed in (a) and (b). In his response, Respondent only addressed the property in (b). He did not explain what happened to the property in (a). He somehow seems to be of the view that $9000.00 should cover all

missing items. The agreement is clear that items in (a) and (b) were to be availed to the Applicant and the $9000.00 was for property that was no longer available at the time of the discussions. I do not agree that the items were not sufficiently particularised, in view of the fact that Applicant was relying on a photograph that had been sent by the Respondent. His failure to deliver what he had said was available is therefore contemptuous.

5. **Non-compliance with the agreed method of disposing of the immovable property**

In terms of the Consent Paper, the parties agreed that the property would be marketed for sale through a multiple mandate to three estate agents to be jointly agreed within fourteen days of the granting of the order. Respondent has failed or refused to comply with this obligation. He has indicated that there is no need to appoint estate agents as he is in the process of securing a private purchaser who has made an offer. The Consent Paper requires that the estate agents are to be "jointly agreed upon by the parties within fourteen (14) days of the granting of the Court Order."

Respondent seems to be resisting proposing an estate agent on the basis that it is not a requirement in the agreement. The statement "I am under no obligation to do so," demonstrates an attitude contrary to cooperation. He seems to be of the view that Applicant's Legal Practitioners should propose the three estate agents and then he can either agree or disagree.

Mr *Mangwengwende* submitted that the parties are still in the process of implementing the agreement on this aspect and there has been partial compliance. An order was therefore necessary to ensure that there would be continued co-operation.

It was common cause that a valid court order exists and the Respondent has knowledge of it. There was compliance outside the stipulated timelines and non-compliance in other aspects. The explanation given for the partial and non-compliance led to the conclusion that the non-compliance was wilful and malicious. It was not disputed that the same counsel representing the Respondent negotiated and agreed to the Consent Paper that he now says is imprecise. Respondent provided a list of items he stated were available coupled with a photograph. The applicant's request is therefore for respondent to provide what he said was still available. Applicant relied on the word and information provided by Respondent. For Respondent to turn around and say the list he provided is not sufficiently particularised or specific is malicious.

Ex Tempore

On the date of the hearing I granted the application and stated the following reasons:-

1. The application is granted. There is provision that allows the Respondent to comply to avoid going to prison.
2. Movables – it has not been disputed that the Respondent provided the list that he now says is not specific.
3. The parties agreed on providing the lease in the Consent Paper and it is also stated in Clause 3 of the offer to swap Property.

> "A formal lease shall be drawn up by the landlord and executed by both parties forthwith, subject to the Tenant's solicitor's reasonable approval. The lease shall incorporate all of the provisions of this offer to lease."

4. If there was a change on the fees to be paid warranting the alteraction of the portion of the rentals due to the Applicant – it was for Respondent to approach the court for variation.
5. As the issue of costs was not argued, costs on an ordinary scale were granted.

MAXWELL J:……

Phillips Law, Applicant's legal practitioners
Dube Manikai & Hwacha, Respondent's Legal Practitioners